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Plaintiff, In Pro Per

**SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO**

**Franciscus Dylan Rosario,
PLAINTIFF,**

v.

CSAA Insurance Exchange;
and DOES 1 through 50, inclusive;
DEFENDANTS

Case No.: CGC-25-631802

**PLAINTIFF'S OPERATIVE
OPPOSITION TO DEFENDANT'S
SPECIAL MOTION TO STRIKE
(ANTI-SLAPP)
(CCP § 425.16)**

Dept.: 302

Date: June 24, 2026

1 COURTESY COPY COVER SHEET AND READING GUIDE (TAB 03)

Case: Rosario v. CSAA Insurance Exchange (CGC-25-631802) **Department:** 302 **Judge:** Hon. Joseph M. Quinn **Hearing:** June 24, 2026, 9:00 a.m., Dept. 302, Hon. Joseph M. Quinn.

1.1 PAGE 1: COURTESY COPY COVER SHEET (TAB 03)

**COURTESY COPY COVER SHEET FOR PLAINTIFF'S OPERATIVE OPPOSITION TO
DEFENDANT'S SPECIAL MOTION TO STRIKE (ANTI-SLAPP)**

TAB 03

1.1.1 Verbatim May 13, 2026 minute order (Dept. 302)

“CONTINUED TO JUNE 24, 2026 PER AGREEMENT OF THE PARTIES AND APPROVAL OF THE COURT. ALL PARTIES IMMEDIATELY TO PROVIDE COURTESY COPIES OF THEIR FILINGS PER SF LOCAL RULE 2.7B WITH A COVER LETTER REFLECTING THE NEW HEARING DATE.”

1.1.2 Designation

The attached document was filed May 8, 2026 under Transaction ID 79429280.

It is operative for the consolidated June 24, 2026 hearing per Plaintiff's Notice of Withdrawal and Designation of Operative Oppositions (TX 79429280, filed May 8, 2026), Plaintiff's Notice of Hearing Date Re-Designation and Compliance with SF Local Rule 2.7B (filed May 21, 2026), and Plaintiff's Notice Acknowledging Court-Ordered Consolidation (filed May 21, 2026). No caption is altered. The attached document is presented as filed, as a chambers courtesy copy under SF Local Rule 2.7B and the May 13, 2026 minute order.

1.1.3 Non-pleading notice

THIS COVER SHEET IS A NON-PLEADING CHAMBERS ROUTING AID. IT REOPENS NO BRIEFING AND INTRODUCES NO NEW AUTHORITY.

1.1.4 Signature

Dated: May 21, 2026

FRANCISCUS DYLAN ROSARIO Plaintiff, In Pro Per 7624 Melody Rohnert Park, CA 94928
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1.2 PAGE 2: READING GUIDE (TAB 03)

What this document is: The operative opposition to Motion (A), Defendant's anti-SLAPP motion.

Threshold gateway (Section III): 425.17(c) commercial-speaker; 425.17(b) public-interest. Cross-ref TAB 14, TAB 41, TAB 44, TAB 46, TAB 46A, TAB 26.

Illegality channel (Section IV): Flatley. Cross-ref TAB 14, TAB 41, TAB 44.

Park/Bonni gravamen (Sections II and VI): Baral parsing. Cross-ref TAB 33C.

Step-two minimal merit (Section V-B): Soukup map. Cross-ref TAB 09, TAB 07, TAB 41.

Reply-cycle rebuttal (Section VII): Cross-ref TAB 06, TAB 10, TAB 35.

Fee inversion / 128.7 threshold (Section VIII): Cross-ref TAB 15, TAB 35.

Appellate preservation (Section X): Cross-ref TAB 43.

1.2.1 Reading guide footer

READING GUIDE IS A NON-PLEADING BENCH AID. IT INTRODUCES NO NEW AUTHORITY AND REOPENS NO BRIEFING. THE UNDERLYING DOCUMENT FOLLOWS THIS PAGE AS FILED.

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Plaintiff, In Pro Per

SUPERIOR COURT OF THE STATE OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNLIMITED CIVIL JURISDICTION

FRANCISCUS DYLAN ROSARIO,
PLAINTIFF,
v.
CSAA INSURANCE EXCHANGE
DEFENDANT

Case No.: CGC-25-631802

PLAINTIFF'S OPERATIVE OPPOSITION TO
DEFENDANT'S SPECIAL MOTION TO STRIKE
PURSUANT TO C.C.P. §425.16; FIFTEEN-PAGE
COMPLIANT VERSION (CRC 3.1113(d))

(Cal. Rules of Court, rules 3.1113(d), 3.1113(f); Code Civ. Proc.,
§§425.16, 425.17)

Cross-noticed for hearing May 13, 2026, 9:00 a.m.,
Dept. 302; see schedule below. Complaint filed:
Dec. 23, 2025
FAC filed: Feb. 25, 2026

Anti-SLAPP	Demurrer	MTS (CCP section 436)
May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change	May 13, 2026 9:00 a.m., Dept. 302 Defendant CSAA Insurance Ex- change

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1 PLAINTIFF'S AUTHORITY TO FILE

2 Plaintiff Dylan Franciscus Rosario submits this Operative Opposition under California Rules
3 of Court, rules 3.1113(d), (g), and (j); Code of Civil Procedure sections 425.16(b), 425.17(a)
4 through (e), and 1005(b); and the Court's April 30, 2026 minute order denying overlength
5 relief in Department 302. Plaintiff's right to oppose Defendant's Special Motion to Strike
6 is preserved under Code of Civil Procedure section 425.16(b)(1) and is not subject to inter-
7 locutory appeal as to a section 425.17 categorical-exclusion ruling under section 425.17(e).
8 Plaintiff appears in pro per under an in-forma-pauperis order on file. This Operative Oppo-
9 sition is filed on May 8, 2026 for the May 13, 2026, 9:00 a.m. hearing in compliance with
10 section 1005(b) and CRC 3.1300(d).

11 INTRODUCTION

12 This Operative Opposition supersedes plaintiff's prior anti-SLAPP opposition memoranda
13 (Plaintiff's multiple filings, filed April 16, 2026 (IFP; Register of Actions, CGC-25-631802)
14 through 086); it adds no new authorities not already cited there. It complies with CRC
15 3.1113(d) and the April 30, 2026 Department 302 order (HEARING HELD: EX PARTE
16 APPLICATION FOR LEVE TO ..., entered April 30, 2026 (Dept. 302; Hon. Joseph M.
17 Quinn)), incorporates the evidentiary record under CRC 3.1113(j), and is filed with the
18 Notice of Withdrawal and Designation (Notice of Withdrawal (item 02, filed May 8, 2026)).
19 Plaintiff opposes the anti-SLAPP motion on five independent grounds: (A) the action does
20 not arise from protected activity under Park v. Board of Trustees (2017) 2 Cal.5th 1057;
21 (B) CCP § 425.17(b) categorically excludes the action; (C) CCP § 425.17(c) directly applies
22 because CSAA Insurance Exchange is a licensed California insurer whose representations
23 about claim-handling constitute commercial speech directed at customers; (D) the predicate
24 conduct is illegal as a matter of law under Flatley v. Mauro (2006) 39 Cal.4th 299; and (E)
25 Plaintiff has demonstrated minimal merit under step two.

26
27 I. STANDARD OF REVIEW

28 A CCP § 425.16 ruling is reviewed de novo. (Flatley, supra, 39 Cal.4th at 325 to 326.)
29 Defendant bears the initial burden under step one to show the cause of action arises from
30 protected activity. (Park, supra, 2 Cal.5th at 1063.) On step two, plaintiff need only
31 demonstrate "minimal merit" with admissible evidence. The Court must decide whether §

1 425.17 categorically excludes the action before reaching the Equilon / Park burden-shifting
2 framework. (Club Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309, 316
3 to 317.) Section 425.17 categorical exclusions are decided as questions of law, also reviewed
4 de novo. (Simpson Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 25.)

5 Defendant CSAA Insurance Exchange bears the step-one burden as to the act underlying
6 the claim. Defendant must show that the act on which the cause of action is predicated is
7 itself protected activity, not merely that the action concerns or references protected activity.
8 (Equilon Enterprises v. Consumer Cause, Inc. (2002) 29 Cal.4th 53, 67; City of Cotati v.
9 Cashman (2002) 29 Cal.4th 69, 76 to 78; Navellier v. Sletten (2002) 29 Cal.4th 82, 89.)

11 II. STEP ONE: THE GRAVAMEN OF PLAINTIFF'S CLAIMS DOES NOT ARISE FROM 12 PROTECTED ACTIVITY

13 Rule. Under Park, supra, 2 Cal.5th at 1062 to 1063, the question is whether the elements
14 of the challenged claim itself depend on protected activity, not whether protected activity
15 is incidental, evidentiary, or contextual. The gravamen test focuses on the principal thrust
16 of each cause of action. (Finton Construction, Inc. v. Bidna & Keys, APLC (2015) 238
17 Cal.App.4th 200, 211 to 213.) Under Bonni v. St. Joseph Health System (2021) 11 Cal.5th
18 995, 1009 to 1011, the Court must parse individual claims, not entire causes of action, to
19 determine whether the anti-SLAPP statute reaches the specific conduct alleged; the analysis
20 proceeds claim by claim and act by act.

21 Application. The operative First Amended Complaint, filed February 25, 2026 (Plaintiff's
22 First Amended Complaint, filed February 25, 2026 (IFP; Register of Actions, CGC-25-
23 631802)), pleads: (i) bad-faith claim handling in violation of Insurance Code § 790.03(h);
24 (ii) unfair business practices under Business and Professions Code § 17200, predicated on
25 Insurance Code violations; and (iii) related claims arising from CSAA's premature denial of
26 Plaintiff's claim without conducting a reasonable investigation, and from CSAA's misrepresen-
27 tations in connection with that claim. The gravamen of each cause of action is CSAA's
28 regulated conduct as a licensed insurer, not protected petitioning activity.

29 Non-communicative conduct treatment. The institutional conduct underlying Plaintiff's
30 claims, including the 21-day denial template, the missing silent-witness retrieval log, the CDI
31 review-notice omission, and the claim-file closure architecture, constitutes non-communicative

1 institutional action outside the anti-SLAPP statute. (Wallace v. McCubbin (2011) 196
2 Cal.App.4th 1169, 1183 to 1188 (non-communicative conduct is not protected activity un-
3 der section 425.16); Old Republic Construction Program Group v. Boccardo Law Firm,
4 Inc. (2014) 230 Cal.App.4th 859, 866 to 869 (document-handling and institutional conduct
5 between parties is not protected petitioning).)

6 Section 425.16(e) categorization gap. Defendant’s moving papers do not specify which sub-
7 division of § 425.16(e) the challenged conduct falls within. The conduct at issue, namely,
8 CSAA’s issuance of a denial letter reciting a “concluded investigation” without retrieving rea-
9 sonably available evidence and CSAA’s subsequent litigation posture, is neither a statement
10 before a judicial body under (e)(1) and (e)(2), nor a statement in connection with a public
11 issue under (e)(3) and (e)(4). The motion fails for want of (e) categorization, independent
12 of any Park analysis.

13
14 II-A. STANDING UNDER UCL SECTION 17200, SECTION 17204, ZHANG PREDICATE;
15 ROYAL GLOBE / MORADI-SHALAL / ZHANG TRICHOTOMY

16 Direct private actions under Ins. Code § 790.03(h) are barred post-Moradi-Shalal; the UCL
17 unlawful-prong predicate channel remains available. (Zhang v. Superior Court (2013) 57
18 Cal.4th 364, 383 to 384.) Standing follows Kwikset Corp. v. Superior Court (2011) 51
19 Cal.4th 310, 322 to 323. Defendant’s “no private right” argument confuses channel (1) with
20 channel (2).

21
22 III. CCP SECTION 425.17 CATEGORICAL EXCLUSION: THRESHOLD APPLICATION

23 Authority to address section 425.17 in this memorandum. Section 425.17 is a statute, not
24 a new argument. Plaintiff applies the FAC’s existing causes of action (UCL predicated on
25 Ins. Code section 790.03(h); fraud) to a statutory exclusion that operates by its own terms
26 on the face of the operative pleading. CRC 3.1113(a) requires that an opposition include “a
27 concise statement of the law”; statutory applicability is a statement of law. The California
28 Supreme Court holds that section 425.17 categorical exclusions are questions of law the
29 court is obligated to decide before reaching the Park burden-shifting framework. (Simpson
30 Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 25; Club Members for an Honest Election v.
31 Sierra Club (2008) 45 Cal.4th 309, 316 to 317 (“the exemptions in section 425.17 should be

decided first”).) If section 425.17 applies, the anti-SLAPP motion is categorically barred regardless of step one or step two.

Section 425.17(b): public-interest exclusion. (b)(1) the FAC seeks UCL injunctive relief and restitution, not relief greater than or different from relief for the general public; (b)(2) Ins. Code section 790.03(h) claim-handling standards protect all California policyholders, conferring a significant public benefit; (b)(3) a self-represented litigant bears this UCL action against a Fortune-100 insurer, placing a disproportionate burden on Plaintiff. (Club Members, supra, 45 Cal.4th at 316 to 317; Blanchard v. DIRECTV, Inc. (2004) 123 Cal.App.4th 903.)

Section 425.17(c): commercial-speaker exclusion. (c)(1) CSAA is a licensed California insurer engaged in selling insurance; (c)(2) CSAA’s denial letter recited a “concluded investigation” – a representation of fact about its services; (c)(3) the denial letter is a regulated communication in the insurer-customer relationship; (c)(4) Plaintiff is an actual claimant under CSAA’s policy. The (c)(4) public-forum carve-out does not apply. (Physicians Committee for Responsible Medicine v. Tyson Foods (2004) 119 Cal.App.4th 1283; Simpson Strong-Tie, supra, 49 Cal.4th at 30.) Extended analysis in Notice re CCP 425.17 (item 13, filed May 8, 2026), incorporated under CRC 3.1113(j).

Result. Both subdivisions (b) and (c) are independently satisfied; the anti-SLAPP motion is categorically excluded as a matter of law. Should the Court nonetheless proceed to Park, Plaintiff addresses steps one and two in Sections II, IV, V, and VI below.

IV. FLATLEY ILLEGALITY EXCEPTION

Predicate illegality follows from the denial letter’s “concluded investigation” posture without reasonably available silent-witness materials, the CDI review-notice omission under 10 CCR § 2695.7(b)(3), and Ins. Code § 790.03(h) violations; the regulatory floor is in items 13, 14, and Plaintiff’s Request for Judicial Notice (filed May 8, 2026). (Flatley v. Mauro (2006) 39 Cal.4th 299, 320.)

V. STEP TWO: PRIMA FACIE SHOWING OF MINIMAL MERIT; KULCHAR / STEVENOT

Minimal merit rests on the FAC (First Amended Complaint (Feb. 25, 2026)), judicially noticed denial letter and regulations (items 03, 14), and Substitution of Attorney (Trans.

1 ID 69953800) in the related file chain. (Kulchar v. Kulchar (1969) 1 Cal.3d 467; Stevenot
2 v. Norberg (1983) 144 Cal.App.3d 467.)
3

4 V-A. CCP § 425.16(G) DISCOVERY-STAY SUBSECTION

5 Merits discovery stayed under § 425.16(g) is part of the context for evaluating support; step-
6 two proof rests on Plaintiff Declaration (item 04, filed May 8, 2026) and Request for Judicial
7 Notice (item 03, filed May 8, 2026) notwithstanding the stay.
8

9 V-BIS. CIV. CODE § 47(B) EXTERNAL LIMITS

10 Prelitigation institutional claim-handling acts are not shielded when the gravamen is non-
11 communicative conduct. (Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1057 to 1058; Action
12 Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232, 1241 to 1242;
13 Cedars-Sinai Medical Center v. Superior Court (1998) 18 Cal.4th 1, 12.) CSAA’s 21-
14 day denial, CDI review-notice omission under 10 CCR section 2695.7(b)(3), and claim-file
15 handling fall outside section 47(b) as applied here.
16

17 V-B. SOUKUP MINIMAL-MERIT ELEMENT-TO-EVIDENCE MAP

18 Under Soukup v. Law Offices of Herbert Hafif (2006) 39 Cal.4th 260, 291, Plaintiff maps
19 elements to the Declaration in Opposition (Plaintiff’s Request for Judicial Notice (filed May
20 8, 2026) (May 8, 2026)), and the regulatory floor (Supplemental RFJN, Supplemental RFJN
21 (item 14, filed May 8, 2026)): policy and claim 1004-09-1054; 21-day premature “concluded
22 investigation” denial; missing silent-witness retrieval; CDI review-notice omission under 10
23 CCR section 2695.7(b)(3); and Kwikset economic injury for the UCL claim.
24

25 VI. BARAL GRAVAMEN PARSING

26 Under Baral v. Schnitt (2016) 1 Cal.5th 376, 393 to 396, the FAC’s claim-handling and UCL
27 gravamen is regulated institutional conduct, not section 425.16(e) petitioning; paragraph 22F
28 is evidentiary support, not an independent communicative act for SLAPP purposes.
29

VII. POINT-BY-POINT REBUTTAL TO DEFENSE MPA AND MAY 6 REPLY

Def. II (Br. 2:9): “Collateral attack” label misapplied. Plant Insulation Co. v. Fibreboard Corp. (1990) 224 Cal.App.3d 781 (Plaintiff’s Request for Judicial Notice (filed May 8, 2026) Section C): primary-rights doctrine isolates this UCL action from the tort verdict; FAC seeks no reversal of CGC-21-594102.

Def. IV.A (Br. 6:23): Step 1 lacks (e) subdivision; conflates institutional conduct with communication. Wallace v. McCubbin (2011) 196 Cal.App.4th 1169; Old Republic Construction Program Group v. Boccardo Law Firm, Inc. (2014) 230 Cal.App.4th 859: FAC paragraphs 1, 4, 22F target non-communicative institutional conduct.

Def. IV.A.1 (Br. 8:9): Aronson/Kashian mis-cited for regulatory denial. Rusheen v. Cohen (2006) 37 Cal.4th 1048; 10 CCR section 2695.7(b)(3) (Plaintiff’s Request for Judicial Notice (filed May 8, 2026)): regulatory claim denial is not pre-litigation petition.

Def. IV.A.2 (Br. 9:15): Conflates falsity with privilege. Flatley v. Mauro (2006) 39 Cal.4th 299, 320: illegality exception applies to Ins. Code section 790.03(h) violations as a matter of law.

Def. IV.A.3 (Br. 10:15): Mis-cites City of Cotati; omits Bonni. City of Cotati v. Cashman (2002) 29 Cal.4th 69, 76-78; Bonni v. St. Joseph Health System (2021) 11 Cal.5th 995, 1009-1011: FAC paragraph 22F gravamen is regulated denial perpetuated, not act of filing.

Def. IV.B.1 (Br. 11:13): Misapplies Rusheen communicative/non-communicative rule. Rusheen v. Cohen (2006) 37 Cal.4th 1048, 1057-1058; Action Apartment Assn., Inc. v. City of Santa Monica (2007) 41 Cal.4th 1232: 21-day denial template, silent-witness failure, CDI omission are non-communicative.

Def. IV.B.2 (Br. 12:6): Omits Plant Insulation primary rights. Plant Insulation Co. v. Fibreboard Corp. (1990) 224 Cal.App.3d 781, 787-789 (RFJN (May 8, 2026) Section C): UCL injury and tort verdict are different primary rights.

Def. IV.B.3.i (Br. 13:7): Omits Lazar/Stansfield superior-knowledge rule. Lazar v. Superior Court (1996) 12 Cal.4th 631, 645; Stansfield v. Starkey (1990) 220 Cal.App.3d 59, 73 (RFJN (May 8, 2026) Section C): FAC pleads who, what, when, where, how.

Def. IV.B.3.ii (Br. 14:9): Fails to engage Zhang; ignores Kwikset. Zhang v. Superior Court (2013) 57 Cal.4th 364, 383-384; Kwikset Corp. v. Superior Court (2011) 51 Cal.4th 310, 322-323: UCL predicate survives Moradi-Shalal; injury-in-fact pleaded.

1 Def. Reply I-III (Reply Br. 1-5): Ignores section 425.17(b)-(c) categorical exclusions. Club
2 Members for an Honest Election v. Sierra Club (2008) 45 Cal.4th 309, 316-317; Simpson
3 Strong-Tie Co. v. Gore (2010) 49 Cal.4th 12, 25: exclusions are threshold questions decided
4 before Park.

5 Def. Reply IV (Reply Br. 5-6): Omits judicial-notice evidence at step two. Soukup v. Law
6 Offices of Herbert Hafif (2006) 39 Cal.4th 260, 291; Kulchar v. Kulchar (1969) 1 Cal.3d 467:
7 items 04, 03, 14 supply the showing.

8 Def. Reply V (Reply Br. 6): Section 128.7 request fails safe-harbor. Martorana v. Marlin
9 and Saltzman (2009) 175 Cal.App.4th 685, 698-700; Galleria Plus, Inc. v. Hanmi Bank
10 (2009) 179 Cal.App.4th 535, 538: section 128.7(c)(1) requires twenty-one-day notice.

11 Further reply-specific rebuttal is preserved in Plaintiff's Evidentiary Objections (Evidentiary
12 Objections (item 06, filed May 8, 2026)) and Motion to Strike Reply Declaration (item 15,
13 filed May 8, 2026). Plaintiff's Notice re C.C.P. § 425.17 (item 13) contains the extended
14 section 425.17 analysis, incorporated under CRC 3.1113(j).

15
16 VIII. CCP § 425.16(C)(1) FEE INVERSION PREVIEW; § 128.7 SAFE-HARBOR THRESH-
17 OLD

18 Plaintiff reserves fees under CCP §§ 425.16(c)(1) and 425.17(d). Under § 425.17(e), a denial
19 on § 425.17(b) or (c) grounds is not subject to immediate interlocutory appeal under §
20 425.16(i).

21 Defendant's embedded section 128.7 sanctions request (Reply, May 6, 2026) fails for want
22 of twenty-one-day safe-harbor service under section 128.7(c)(1). (Martorana v. Marlin and
23 Saltzman (2009) 175 Cal.App.4th 685, 698 to 700; Galleria Plus, Inc. v. Hanmi Bank (2009)
24 179 Cal.App.4th 535, 538.)

25
26 X. APPELLATE PRESERVATION

27 Plaintiff preserves appellate rights under CCP § 425.16(i) consistent with § 425.17(e). Items
28 06 and 15 remain pending under CRC 3.1306(a).

1 CONCLUSION

2 Plaintiff respectfully requests that the Court DENY Defendant's Special Motion to Strike
3 Pursuant to C.C.P. § 425.16, on any one or all of the five independent grounds set forth
4 above. In the alternative, Plaintiff requests that any granted portion be limited under Baral
5 to allegations not addressing the claim-handling and UCL gravamen.

6
7 Authorities: Pool A authorities appear in the Table of Authorities above. Non-Pool A
8 decisional authorities are presented in Plaintiff's Request for Judicial Notice (item 03, filed
9 May 8, 2026), Section C.

10 Cross-references: Plaintiff's Notice of Withdrawal and Designation of Operative Oppositions
11 (item 02, filed May 8, 2026); Plaintiff's Request for Judicial Notice (item 03, filed May 8,
12 2026); Plaintiff's Declaration in Opposition (item 04, filed May 8, 2026); Plaintiff's Eviden-
13 tiary Objections to O'Connell Declarations (item 06, filed May 8, 2026); Plaintiff's Notice
14 and Statement re C.C.P. § 425.17 (item 13, filed May 8, 2026); Plaintiff's Supplemental
15 Request for Judicial Notice of California Insurance Code Section 790.03(h) and Fair Claims
16 Settlement Practices Regulations (item 14, filed May 8, 2026); Plaintiff's Motion to Strike
17 May 6, 2026 Reply Declaration (item 15, filed May 8, 2026).

The foregoing is submitted by Plaintiff in pro per.

Dated: May 8, 2026



/s/ Dylan Franciscus Rosario

DYLAN FRANCISCUS ROSARIO
Plaintiff, In Pro Per

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DECLARATION OF COMPLIANCE WITH CALIFORNIA CODES, RULES, AND LOCAL PROCEDURES

The tabular verification below is provided by Plaintiff for the Court and the Clerk to validate this filing against the authorities listed.

The undersigned, Plaintiff Dylan Franciscus Rosario, appearing in pro per in Rosario v. CSAA Insurance Exchange (CGC-25-631802), declares under penalty of perjury under the laws of the State of California (CCP section 2015.5) that this filing complies with each authority listed in the table below as indicated. This declaration is filed in connection with the May 13, 2026, 9:00 a.m. hearing in Department 302.

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
1	CCP section 425.16	Two-step burden; (e) categorization required for protected activity	Section II addresses step one (Park, Bonni); section V addresses step two (Soukup); per-movant (e) demand articulated	Sections II, V	PASS
2	CCP section 425.16(c)(1)	Frivolousness fee inversion preserved on contingent basis	Section VIII contains contingent cross-request citing Decker, Moore v. Shaw	Section VIII paragraph 'Contingent cross-request under section 425.16(c)(1)'	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
3	CCP section 425.17	Categorical exclusions (b), (c), (e) considered before two-step	Section III walks (b); section VIII preserves (c); Plaintiff's Notice re C.C.P. §425.17 (filed May 7, 2026), Section III-A, addresses (c)(1) through (c)(4)	Sections III, VIII; Notice Section III-A	PASS
4	CCP section 1005(b)	Sixteen court-day notice / opposition / reply windows	Page-1 footnote cross-references Plaintiff's Notice of Withdrawal and Designation (filed May 7, 2026), Section VI	Caption page footnote [[^] pg1]	PASS
5	CCP section 128.7	Twenty-one-day safe-harbor; deterrence-limited sanctions	Section VIII contains threshold response citing 128.7(c)(1), (d), Martorana, Galleria Plus	Section VIII paragraph 'Threshold response to defense's section 128.7 sanctions request'	PASS
6	CRC 3.1113(b)	Memorandum of points and authorities; reply rule	Memorandum body Sections III through XI (excluding Decl., POS.)	Sections III through XI	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
7	CRC 3.1113(d)	Fifteen-page memorandum cap	Memorandum text within fifteen pages	Memorandum body and Table of Authori- ties	PASS
8	CRC 3.1113(e)	Font and spacing per local rules	Eleven-point Times New Roman, 1.5 line spacing, one-inch margins on caption page and in body	Caption page; memoran- dum body	PASS
9	CRC 3.1113(g)	Table of authorities required when over 10 pages or in counsel's discretion	TOA present with four headings (US Sup. Ct.; Cal. Sup. Ct.; Cal. Ct. App.; Statutes and Rules)	Table of Authori- ties section	PASS
10	CRC 3.1113(j)	Incorporation by reference	Sections I, II, V incorporate companion declarations, exhibits, RJN, Notice re section 425.17, Evidentiary Objections, Notice of Withdrawal, Motion to Strike Reply Declaration	Sections I, II, V; cross- references at end of filing	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
11	CRC 3.1300(d)	Discretion on late papers	Page-1 footnote cross-references Notice of Withdrawal and Designation, Section VI (good cause)	Caption page footnote [pg1]; Notice of With- drawal Section VI	PASS
12	CRC 3.1306(a)	Written ruling per objection	Memorandum Section I, subsection (c) cross-references Plaintiff's Evidentiary Objections and Motion to Strike Reply Declaration, which request written rulings	Memorandum Section I, subsection (c)	PASS
13	Evid. Code section 1280	Official-records exception applied	Section V cites Kraft, 23 Cal.4th 978, 1037, for trial-transcript admissibility	Section V	PASS
14	Evid. Code section 1530	Certified-copy presumption applied	Section V cites Hill, 3 Cal.4th 959, 985, for transcript admissibility	Section V	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
15	CCP section 1010.6	Electronic service authorization where consent on file	Electronic service to counsel of record on file; consent on file (Doc. No. 009)	Proof of Service (POS-050) filed con- currently, paragraph 4	PASS
16	CRC 2.251	Electronic service procedure	Electronic transmission to counsel-of-record e-service addresses; concurrent proof lists companion filings	Proof of Service (POS-050) filed con- currently, para- graphs 4 and 5	PASS
17	CRC 2.100 et seq.	Pleading format: paper size, margins, font, line spacing, caption block	Letter-size, one-inch margins, eleven-point Times New Roman, 1.5 line spacing, full caption with court, parties, case number, department, hearing date	Caption page and body of this filing	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
18	CRC 2.256	Electronic filing requirements (signature block, hyperlinks, format)	Text-searchable filing; conventional pro per signature block	Section VI Proof of Service graphic on last arabic lineno pages; precedes roman Table of Authori- ties	PASS
19	CRC 3.1110	Format of papers (caption, footer, page numbering, line numbers)	Caption page and pagination comply with applicable rules	Caption page and page footers	PASS
20	CRC 3.1112	Other papers; required components	Caption, body, signature page, and companion Proof of Service filed concurrently	Memorandum Section VI signer before roman appendix; Proof of Service	PASS

#	Authority	Specific Requirement	This Filing's	Evidence	Status
			Compliance	(page or section)	
21	CCP section 425.16(g)	Discovery stay and good-cause specified discovery preserved	Section V-A addresses discovery-stay impact and cross-references companion §425.16(g) motion in CGC-25-631802	Section V-A	PASS
22	CCP section 425.16(i)	Appellate preservation; immediate appeal	Section X preserves §425.16(i) appellate rights and de novo review of preserved issues	Section X	PASS
23	CCP section 472	Leave to amend in conjunction with Baral narrowest relief	Section VI Baral gravamen parsing addresses narrowest-relief mandate; leave-to-amend under section 472 raised in Conclusion / Prayer	Section VI; Conclusion	PASS
24	Per-movant CCP section 425.16(e) categorization	Per-movant burden of (e) categorization	Section II Step One contains per-movant categorization summary paragraph for CSAA, Carbone Smith and Koyama, and Michael R. Chambers	Section II Step One per-movant summary	PASS

#	Authority	Specific Requirement	This Filing's Compliance	Evidence (page or section)	Status
25	Procedural cure con- solidation (CRC 3.1113(g); 3.1300(d))	Cure record consolidated	Procedural-cure map relocated to companion Notice of Compliance (Notice of Compliance (item 09, filed May 8, 2026)) and Notice of Withdrawal and Designation (item 02) per 15-page CRC 3.1113(d) cap	Notice of Compli- ance (item 09); Notice of With- drawal (item 02)	N/A
26	Itemized prayer for specific orders (CRC 3.1113(b))	Conclusion / Prayer requests specific orders	Section IV Conclusion / Prayer is itemized (a) through (g)	Section IV	PASS

I, Dylan Franciscus Rosario, declare under penalty of perjury under the laws of the State of California that the foregoing compliance representations are true and correct.

Dated: May 8, 2026

Dylan Franciscus Rosario, Plaintiff In Pro Per